



# Saint George Hanover Square Burial Ground Act 1964

## CHAPTER xxxvii

### ARRANGEMENT OF SECTIONS

#### Section

1. Short title.
2. Interpretation.
3. Discharge of trusts and restrictions affecting burial ground and saving for private rights.
4. Power to use burial ground for other purposes.
5. As to consultation with Saint George's Burial Ground (Tyburn) Protection Association.
6. Power to sell burial ground and application of proceeds.
7. Removal of human remains from burial ground.
8. Saving for town and country planning.
9. Costs of Act.



**ELIZABETH II**



**1964 CHAPTER xxxvii**

An Act to provide for the removal of the restrictions attaching to the burial ground at Bayswater Road in the metropolitan borough of Paddington vested in the rector and churchwardens of the parish of Saint George Hanover Square; to authorise the subsequent use or disposition thereof; and for other purposes.

[31st July 1964]

**W**HEREAS—

(1) By an Act passed in the third year of the reign of His late Majesty King George 3 intituled “An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish” a certain piece or parcel of ground therein described and containing 5 acres or thereabouts was settled upon and vested in the rector and churchwardens for the time being of the parish and parish church of Saint George Hanover Square to be used, appropriated and enjoyed by the inhabitants of the said parish as and for a cemetery or burial place (in this Act referred to as “the burial ground”):

(2) Burials in the burial ground were discontinued by virtue of an Order in Council of Her late Majesty Queen Victoria dated the 9th March, 1854:



(3) It is expedient that the provisions contained in this Act with respect to the use, dealing with or disposition of the burial ground and the removal therefrom of any human remains interred therein should be enacted:

(4) It is expedient that the other provisions contained in this Act should be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) A plan marked "Saint George Hanover Square Burial Ground" and showing the burial ground was in the month of November, 1963, deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and in the vestry of the parish church of Saint George, Hanover Square, at Mill Street in the city of Westminster and is in this Act referred to as the deposited plan:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

**Short title.**

1. This Act may be cited as the Saint George Hanover Square Burial Ground Act 1964.

**Interpretation.**

2.—(1) In this Act, unless the subject or context otherwise requires—

"the Act of 1762" means the Act passed in the third year of the reign of His late Majesty King George 3 intituled "An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish";

"the bishop" means the Bishop of London for the time being and during a vacancy in the see of London includes the guardian of the spiritualities thereof;

"the burial ground" means the cemetery or burial place vested in the rector and churchwardens by the Act of 1762 (except that part thereof which is subject to the trusts of the Hyde Park Place Estate Charity) and which is shown coloured pink on the deposited plan;

"the city" means the city of Westminster;

"the consistory court" means the consistory court of the diocese of London;



“the deposited plan” means the plan referred to in the preamble to this Act;

“enactment” has the same meaning as in the Town and Country Planning Act, 1962;

“the fund” means the London Diocesan Fund;

“the Hyde Park Place Estate Charity” means the charity the administration and management whereof is regulated by a scheme approved by order dated the 7th May, 1914, of the Chancery Division of the High Court of Justice;

“the owner” means the person in whom the burial ground or any part thereof is for the time being vested;

“the parish” means the parish of Saint George Hanover Square in the city as for the time being constituted;

“the parish church” means the parish church of Saint George Hanover Square, in the city;

“the rector and churchwardens” means the rector and churchwardens for the time being of the parish;

“the trustees” means the persons who shall from time to time be the ecclesiastical trustees of the Hyde Park Place Estate Charity.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by, or by virtue of, any subsequent enactment, including this Act.

3. As from the passing of this Act the burial ground shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing of this Act attached thereto under ecclesiastical law, and from all rights and interests of any person who is a personal representative or relative of any deceased person whose remains are interred in the burial ground and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the burial ground or any part thereof being a disused burial ground or otherwise: Discharge of trusts and restrictions affecting burial ground and saving for private rights.

Provided that nothing in this Act shall operate to affect prejudicially the rights or interests of the Postmaster General in relation to the underground railway constructed under the burial ground or any private right or easement (not being a right in respect of a grave) over the burial ground or any part thereof, which attached thereto immediately before the passing of this Act.



Power to use  
burial ground  
for other  
purposes.

4.—(1) Notwithstanding anything contained in the Disused Burial Grounds Act, 1884, or any other enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the burial ground or any part thereof for any purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains.

(2) So much of the Act of 1762 as requires the burial ground to be used, appropriated and enjoyed by the inhabitants of the parish as and for a cemetery or burial place shall as from the passing of this Act cease to have effect.

As to  
consultation  
with Saint  
George's  
Burial  
Ground  
(Tyburn)  
Protection  
Association.

5.—(1) Before the owner or any other person makes application to the local planning authority under article 5 of the Town and Country Planning General Development Order 1963 (or under the provisions of any order amending, varying or replacing the said order of 1963) for approval with respect to any matters relating to the siting, design or external appearance of buildings proposed to be erected on the burial ground or any part thereof or the means of access thereto or any other matters reserved in the planning permission in respect of the proposed development of the burial ground he shall consult with the association unless at the date of the application the association has ceased to exist.

(2) For the purposes of this section the owner or any other person shall be deemed to have consulted with the association if he has given or sent to the secretary or to the solicitors of the association a copy of any plans, drawings and particulars necessary to describe the matters referred to in subsection (1) of this section so far as they relate to the development proposed by him and given the chairman and secretary of the association or the other representatives of the association appointed for the purpose a reasonable opportunity to ask questions and comment thereon.

(3) In this section "the association" means the Saint George's Burial Ground (Tyburn) Protection Association and "planning permission" has the same meaning as in the Town and Country Planning Act, 1962.

Power to  
sell burial  
ground and  
application  
of proceeds.

6.—(1) If the rector and churchwardens under the powers contained in section 4 (Power to use burial ground for other purposes) of this Act deal with or dispose of (by sale or otherwise) the burial ground or any part thereof they may do so for such price or consideration and in such manner and upon and subject to such terms as the rector and churchwardens may think fit.

(2) Upon any such dealing with or disposition of the burial ground or any part thereof the rector and churchwardens shall after deducting the amount of any costs, charges and expenses



incurred by them under section 9 (Costs of Act) of this Act or in connection with such dealing with or disposition pay—

- (a) one-half of the net proceeds to the fund for the general purposes of the fund;
- (b) one-quarter of the net proceeds to the fund as trustee for the rector and churchwardens; and
- (c) one-quarter of the net proceeds to the trustees.

(3) The part of the net proceeds paid to the fund as trustee shall be applied by the fund as to capital and income at the discretion of the rector and churchwardens for any one or more of the following purposes, namely:—

- (a) the provision of living accommodation for the rector of the parish and his successors;
- (b) the preservation and maintenance of the fabric and of the organ of the parish church; and
- (c) the formation of an endowment fund the income of which shall be used for the maintenance of the parish church and its services.

(4) The part of the net proceeds paid to the trustees shall be applied by the trustees as to capital and income at the discretion of the trustees for any one or more of the following purposes, namely:—

- (a) the preservation and maintenance of the fabric of the churches of the ecclesiastical districts into which the civil parish of Saint George Hanover Square in the city has been or may be divided;
- (b) the provision wholly or in part or the augmenting from time to time at the discretion of the trustees of the stipends of the curates and the assistant curates of the churches of the said ecclesiastical districts;
- (c) any ecclesiastical purpose within the said ecclesiastical districts.

(5) The trustees may amalgamate the income received and administered by them from the one-quarter part of the net proceeds with the income of the ecclesiastical moiety of the Hyde Park Place Estate Charity.

- 7.—(1) (a) Before any person begins to use any part of the burial ground for—
- (i) the erection thereon or thereunder of any building;
  - (ii) the laying out or construction of any road thereover;
  - (iii) the provision of any service likely to involve the disturbance of human remains;
- Removal of human remains from burial ground.



- (iv) any other purpose likely to involve the disturbance of human remains;

the owner of that part shall remove or cause to be removed the remains of persons interred therein in accordance both with the requirements of the Secretary of State and with the provisions of subsections (2) to (9) of this section.

(b) Any question as to whether disturbance of human remains is likely to be involved in using any part of the burial ground for the purposes mentioned in sub-paragraphs (iii) and (iv) of paragraph (a) of this subsection shall be determined by the Secretary of State whose decision shall be final.

(2) Before proceeding to remove any such remains the owner shall give notice of his intention so to do by publishing a notice once in each of two successive weeks in a newspaper circulating in the city and shall display a like notice in a conspicuous place in the burial ground and such notice shall have embodied in it the substance of subsections (3), (4), (5), (6), (7), (8) and (9) of this section.

(3) At any time within two months after the first publication of such notice, any person who is a personal representative or relative of any deceased person whose remains are interred in any part of the burial ground from which human remains are proposed to be removed may give notice in writing to the owner of that part of his intention to undertake the removal of such remains and thereupon he shall be at liberty, within two months from the date of such last-mentioned notice, without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop to cause such remains to be removed to and reinterred in any other burial ground or cemetery in which burials may legally take place (but in the case of a churchyard only with the consent of the incumbent of the benefice concerned) or to be removed to and cremated in any crematorium.

(4) If any person giving notice to the owner under subsection (3) of this section fails to satisfy the owner that he is such personal representative or relative as he claims to be, the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of a removal and reinterment or cremation (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the owner, such sum to be apportioned, if necessary, equally according to the number of deceased persons whose remains are in the grave.



(6) If within the aforesaid period of two months after the first publication of the notice mentioned in subsection (2) of this section no notice shall have been given to the owner under subsection (3) of this section in respect of the remains in any grave, or if after such last-mentioned notice has been given the person giving it or, as the case may be, the person specified in any order made under subsection (4) of this section fails to comply with either a provision of this section or a regulation of the bishop, the owner may, without any faculty for that purpose, remove the remains of the deceased person and cause them to be reinterred in such other burial ground or cemetery in which burials may legally take place (but, in the case of interment in a churchyard, the previous consent of the incumbent of the benefice concerned shall be required) or cremated in such crematorium as the owner thinks suitable for the purpose.

(7) Upon any removal of remains from any part of the burial ground, the owner of that part shall deposit with the Registrar General a certificate of removal and reinterment or cremation giving the dates of removal and reinterment or cremation respectively, identifying the place from which the remains were removed and the place in which they were reinterred or cremated and showing the particulars of each removal separately.

(8) Any monument or tombstone relating to the remains of any deceased person removed under this section shall, at the expense of the owner, be removed and re-erected at the place of reinterment of such remains or at such place as the bishop may direct on the application (if any) of such personal representative or relative as aforesaid or failing such application on the application of the owner and the owner shall cause a record to be made of each monument and tombstone taken from the burial ground under this section containing—

- (i) a copy of the inscription on it; and
- (ii) if it is intended to preserve the monument or tombstone a statement naming the place to which it has been taken;

and shall deposit a copy of the record with the Registrar General:

Provided that in the case of a monument or tombstone in respect of which no application is made by such personal representative or relative as aforesaid it shall not be necessary to re-erect the monument or tombstone if the owner considers that, by reason of its ruinous condition, it is unsuitable for re-erection and any such monument or tombstone may be disposed of in such manner as the owner, subject to the faculty jurisdiction within the diocese of London, may direct.



(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the metropolitan borough of Paddington.

Saving for  
town and  
country  
planning.

8. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

Costs of Act.

9. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the rector and churchwardens.

*Table of Statutes referred to in this Act*

| Title or short title                                                                                                                                                                                                                                                  | Session and chapter    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| “ An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish ” ... .. | 3 Geo. 3 c. 50.        |
| Disused Burial Grounds Act, 1884 ... ..                                                                                                                                                                                                                               | 47 & 48 Vict. c. 72.   |
| Town and Country Planning Act, 1962 ... ..                                                                                                                                                                                                                            | 10 & 11 Eliz. 2 c. 38. |

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SIR PERCY FAULKNER, K.B.E., C.B.  
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament  
LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN ENGLAND





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**ELIZABETH II**



**1964 CHAPTER xxxvii**

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[31st July 1964]

**W**HEREAS—

(1) By an Act passed in the third year of the reign of His late Majesty King George 3 intituled “An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish” a certain piece or parcel of ground therein described and containing 5 acres or thereabouts was settled upon and vested in the rector and churchwardens for the time being of the parish and parish church of Saint George Hanover Square to be used, appropriated and enjoyed by the inhabitants of the said parish as and for a cemetery or burial place (in this Act referred to as “the burial ground”):

(2) Burials in the burial ground were discontinued by virtue of an Order in Council of Her late Majesty Queen Victoria dated the 9th March, 1854:



(3) It is expedient that the provisions contained in this Act with respect to the use, dealing with or disposition of the burial ground and the removal therefrom of any human remains interred therein should be enacted:

(4) It is expedient that the other provisions contained in this Act should be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) A plan marked "Saint George Hanover Square Burial Ground" and showing the burial ground was in the month of November, 1963, deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and in the vestry of the parish church of Saint George, Hanover Square, at Mill Street in the city of Westminster and is in this Act referred to as the deposited plan:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

**Short title.**

1. This Act may be cited as the Saint George Hanover Square Burial Ground Act 1964.

**Interpretation.**

2.—(1) In this Act, unless the subject or context otherwise requires—

"the Act of 1762" means the Act passed in the third year of the reign of His late Majesty King George 3 intituled "An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish";

"the bishop" means the Bishop of London for the time being and during a vacancy in the see of London includes the guardian of the spiritualities thereof;

"the burial ground" means the cemetery or burial place vested in the rector and churchwardens by the Act of 1762 (except that part thereof which is subject to the trusts of the Hyde Park Place Estate Charity) and which is shown coloured pink on the deposited plan;

"the city" means the city of Westminster;

"the consistory court" means the consistory court of the diocese of London;



- “ the deposited plan ” means the plan referred to in the preamble to this Act;
- “ enactment ” has the same meaning as in the Town and Country Planning Act, 1962;
- “ the fund ” means the London Diocesan Fund;
- “ the Hyde Park Place Estate Charity ” means the charity the administration and management whereof is regulated by a scheme approved by order dated the 7th May, 1914, of the Chancery Division of the High Court of Justice;
- “ the owner ” means the person in whom the burial ground or any part thereof is for the time being vested;
- “ the parish ” means the parish of Saint George Hanover Square in the city as for the time being constituted;
- “ the parish church ” means the parish church of Saint George Hanover Square, in the city;
- “ the rector and churchwardens ” means the rector and churchwardens for the time being of the parish;
- “ the trustees ” means the persons who shall from time to time be the ecclesiastical trustees of the Hyde Park Place Estate Charity.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by, or by virtue of, any subsequent enactment, including this Act.

3. As from the passing of this Act the burial ground shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing of this Act attached thereto under ecclesiastical law, and from all rights and interests of any person who is a personal representative or relative of any deceased person whose remains are interred in the burial ground and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the burial ground or any part thereof being a disused burial ground or otherwise:

Discharge of trusts and restrictions affecting burial ground and saving for private rights.

Provided that nothing in this Act shall operate to affect prejudicially the rights or interests of the Postmaster General in relation to the underground railway constructed under the burial ground or any private right or easement (not being a right in respect of a grave) over the burial ground or any part thereof, which attached thereto immediately before the passing of this Act.



Power to use  
burial ground  
for other  
purposes.

4.—(1) Notwithstanding anything contained in the Disused Burial Grounds Act, 1884, or any other enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the burial ground or any part thereof for any purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains.

(2) So much of the Act of 1762 as requires the burial ground to be used, appropriated and enjoyed by the inhabitants of the parish as and for a cemetery or burial place shall as from the passing of this Act cease to have effect.

As to  
consultation  
with Saint  
George's  
Burial  
Ground  
(Tyburn)  
Protection  
Association.

5.—(1) Before the owner or any other person makes application to the local planning authority under article 5 of the Town and Country Planning General Development Order 1963 (or under the provisions of any order amending, varying or replacing the said order of 1963) for approval with respect to any matters relating to the siting, design or external appearance of buildings proposed to be erected on the burial ground or any part thereof or the means of access thereto or any other matters reserved in the planning permission in respect of the proposed development of the burial ground he shall consult with the association unless at the date of the application the association has ceased to exist.

(2) For the purposes of this section the owner or any other person shall be deemed to have consulted with the association if he has given or sent to the secretary or to the solicitors of the association a copy of any plans, drawings and particulars necessary to describe the matters referred to in subsection (1) of this section so far as they relate to the development proposed by him and given the chairman and secretary of the association or the other representatives of the association appointed for the purpose a reasonable opportunity to ask questions and comment thereon.

(3) In this section "the association" means the Saint George's Burial Ground (Tyburn) Protection Association and "planning permission" has the same meaning as in the Town and Country Planning Act, 1962.

Power to  
sell burial  
ground and  
application  
of proceeds.

6.—(1) If the rector and churchwardens under the powers contained in section 4 (Power to use burial ground for other purposes) of this Act deal with or dispose of (by sale or otherwise) the burial ground or any part thereof they may do so for such price or consideration and in such manner and upon and subject to such terms as the rector and churchwardens may think fit.

(2) Upon any such dealing with or disposition of the burial ground or any part thereof the rector and churchwardens shall after deducting the amount of any costs, charges and expenses



incurred by them under section 9 (Costs of Act) of this Act or in connection with such dealing with or disposition pay—

- (a) one-half of the net proceeds to the fund for the general purposes of the fund;
- (b) one-quarter of the net proceeds to the fund as trustee for the rector and churchwardens; and
- (c) one-quarter of the net proceeds to the trustees.

(3) The part of the net proceeds paid to the fund as trustee shall be applied by the fund as to capital and income at the discretion of the rector and churchwardens for any one or more of the following purposes, namely:—

- (a) the provision of living accommodation for the rector of the parish and his successors;
- (b) the preservation and maintenance of the fabric and of the organ of the parish church; and
- (c) the formation of an endowment fund the income of which shall be used for the maintenance of the parish church and its services.

(4) The part of the net proceeds paid to the trustees shall be applied by the trustees as to capital and income at the discretion of the trustees for any one or more of the following purposes, namely:—

- (a) the preservation and maintenance of the fabric of the churches of the ecclesiastical districts into which the civil parish of Saint George Hanover Square in the city has been or may be divided;
- (b) the provision wholly or in part or the augmenting from time to time at the discretion of the trustees of the stipends of the curates and the assistant curates of the churches of the said ecclesiastical districts;
- (c) any ecclesiastical purpose within the said ecclesiastical districts.

(5) The trustees may amalgamate the income received and administered by them from the one-quarter part of the net proceeds with the income of the ecclesiastical moiety of the Hyde Park Place Estate Charity.

- 7.—(1) (a) Before any person begins to use any part of the burial ground for—
- (i) the erection thereon or thereunder of any building;
  - (ii) the laying out or construction of any road thereover;
  - (iii) the provision of any service likely to involve the disturbance of human remains;

Removal of  
human  
remains from  
burial ground.



- (iv) any other purpose likely to involve the disturbance of human remains;

the owner of that part shall remove or cause to be removed the remains of persons interred therein in accordance both with the requirements of the Secretary of State and with the provisions of subsections (2) to (9) of this section.

(b) Any question as to whether disturbance of human remains is likely to be involved in using any part of the burial ground for the purposes mentioned in sub-paragraphs (iii) and (iv) of paragraph (a) of this subsection shall be determined by the Secretary of State whose decision shall be final.

(2) Before proceeding to remove any such remains the owner shall give notice of his intention so to do by publishing a notice once in each of two successive weeks in a newspaper circulating in the city and shall display a like notice in a conspicuous place in the burial ground and such notice shall have embodied in it the substance of subsections (3), (4), (5), (6), (7), (8) and (9) of this section.

(3) At any time within two months after the first publication of such notice, any person who is a personal representative or relative of any deceased person whose remains are interred in any part of the burial ground from which human remains are proposed to be removed may give notice in writing to the owner of that part of his intention to undertake the removal of such remains and thereupon he shall be at liberty, within two months from the date of such last-mentioned notice, without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop to cause such remains to be removed to and reinterred in any other burial ground or cemetery in which burials may legally take place (but in the case of a churchyard only with the consent of the incumbent of the benefice concerned) or to be removed to and cremated in any crematorium.

(4) If any person giving notice to the owner under subsection (3) of this section fails to satisfy the owner that he is such personal representative or relative as he claims to be, the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of a removal and reinterment or cremation (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the owner, such sum to be apportioned, if necessary, equally according to the number of deceased persons whose remains are in the grave.



(6) If within the aforesaid period of two months after the first publication of the notice mentioned in subsection (2) of this section no notice shall have been given to the owner under subsection (3) of this section in respect of the remains in any grave, or if after such last-mentioned notice has been given the person giving it or, as the case may be, the person specified in any order made under subsection (4) of this section fails to comply with either a provision of this section or a regulation of the bishop, the owner may, without any faculty for that purpose, remove the remains of the deceased person and cause them to be reinterred in such other burial ground or cemetery in which burials may legally take place (but, in the case of interment in a churchyard, the previous consent of the incumbent of the benefice concerned shall be required) or cremated in such crematorium as the owner thinks suitable for the purpose.

(7) Upon any removal of remains from any part of the burial ground, the owner of that part shall deposit with the Registrar General a certificate of removal and reinterment or cremation giving the dates of removal and reinterment or cremation respectively, identifying the place from which the remains were removed and the place in which they were reinterred or cremated and showing the particulars of each removal separately.

(8) Any monument or tombstone relating to the remains of any deceased person removed under this section shall, at the expense of the owner, be removed and re-erected at the place of reinterment of such remains or at such place as the bishop may direct on the application (if any) of such personal representative or relative as aforesaid or failing such application on the application of the owner and the owner shall cause a record to be made of each monument and tombstone taken from the burial ground under this section containing—

- (i) a copy of the inscription on it; and
- (ii) if it is intended to preserve the monument or tombstone a statement naming the place to which it has been taken;

and shall deposit a copy of the record with the Registrar General:

Provided that in the case of a monument or tombstone in respect of which no application is made by such personal representative or relative as aforesaid it shall not be necessary to re-erect the monument or tombstone if the owner considers that, by reason of its ruinous condition, it is unsuitable for re-erection and any such monument or tombstone may be disposed of in such manner as the owner, subject to the faculty jurisdiction within the diocese of London, may direct.



(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the metropolitan borough of Paddington.

Saving for  
town and  
country  
planning.

8. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

Costs of Act.

9. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the rector and churchwardens.

*Table of Statutes referred to in this Act*

| Title or short title                                                                                                                                                                                                                                                  | Session and chapter    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|
| “ An Act for vesting certain Parcels of Land in Paddington, in the County of Middlesex, in the Rector and Churchwardens of the Parish of Saint George Hanover Square, in the said County; and appropriating the same for a Burial Ground for the said Parish ” ... .. | 3 Geo. 3 c. 50.        |
| Disused Burial Grounds Act, 1884 ... ..                                                                                                                                                                                                                               | 47 & 48 Vict. c. 72.   |
| Town and Country Planning Act, 1962 ... ..                                                                                                                                                                                                                            | 10 & 11 Eliz. 2 c. 38. |

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR  
SIR PERCY FAULKNER, K.B.E., C.B.  
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament  
LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN ENGLAND